

STATE OF NEW YORK

3934--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. HEVESI, LASHER, BURDICK, FORREST, MEEKS, REYES, GALLAGHER, CRUZ, RAGA, KELLES, LEVENBERG, GONZALEZ-ROJAS, McDONALD, ROSENTHAL, TORRES, SIMON, MAHER, MAGNARELLI -- read once and referred to the Committee on Correction -- recommitted to the Committee on Correction in accordance with Assembly Rule 3, sec. 2 -- reported and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to establishing a reintegration pilot program for individuals being released from correctional facilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The correction law is amended by adding a new section 71-b to read as follows:

§ 71-b. Reintegration pilot program. 1. The department, in collaboration with the office of temporary and disability assistance, the office of mental health and the office of addiction services and supports shall establish and conduct a five-year reintegration pilot program to help ensure that incarcerated individuals within correctional facilities receive the supports and services necessary to meaningfully prepare for their release while still incarcerated, to assist individuals to reintegrate into the community upon release, and to reduce recidivism. Such pilot program shall be conducted in three correctional facilities, consisting of one female and two male facilities, selected by the department, taking into consideration adequate geographic distribution within the state as well as availability of sufficient links to supports and services required by this section. For purposes of this pilot program, there shall be at least one hundred incarcerated individuals who on a voluntary basis request placement in the pilot program up to one year before their earliest expected release date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 Each incarcerated individual shall receive an in-depth screening and
2 assessment to determine their specific needs as relating to, including
3 but not limited to, mental health and substance use disorder services,
4 educational needs and job readiness. In addition to an in-depth screen-
5 ing and assessment, participants in the pilot program shall also be
6 linked with not-for-profit organizations and peer to peer engagement
7 opportunities to assist with the individual's reintegration planning.
8 This shall occur no less than six months prior to their expected release
9 date and shall consist of, but not be limited to, assistance applying
10 for public benefits, referrals and links to mental health and/or
11 substance use disorder service providers if applicable, connections to
12 employment opportunities as well as job training programs if appropri-
13 ate, assistance finding available stable housing options to be available
14 upon release and general supports and services that may be helpful for
15 an individual reintegrating back into the community.

16 2. Prior to release from the correctional facility, the department
17 shall identify and place individuals with not-for-profit providers that
18 shall continue supports and services, as needed, for up to an additional
19 year to ensure the individual's successful reintegration into the commu-
20 nity. Such services shall include, but not be limited to, connecting
21 individuals to health and behavioral health services, as appropriate,
22 assistance ensuring compliance with any parole or court mandated activ-
23 ities, connections to employment opportunities based on their skills
24 identified while incarcerated and assistance acquiring stable affordable
25 housing. The collaborating agencies shall contract with not-for-profit
26 providers to effectuate the requirements specified in this section where
27 the department is unable.

28 3. The commissioner, in consultation with appropriate community organ-
29 izations, shall submit within one year of the effective date of this
30 section, and annually thereafter, a report to the governor, the tempo-
31 rary president of the senate, the minority leader of the senate, the
32 speaker of the assembly, and the minority leader of the assembly on the
33 effectiveness of this pilot program. This pilot shall run for two years
34 and collect data on the number of people:

- 35 (a) connected to housing;
- 36 (b) housed;
- 37 (c) connected to employment;
- 38 (d) employed;
- 39 (e) connected to mental health care; and
- 40 (f) with substance abuse disorder.

41 4. No person shall have the right to demand or require participation
42 in the pilot program authorized by this section.

43 5. Nothing in this section shall be construed to authorize the depart-
44 ment to hold an incarcerated individual in confinement beyond their
45 earliest release date.

46 § 2. This act shall take effect on the first of January next succeed-
47 ing the date upon which it shall have become a law. Effective immediate-
48 ly, the addition, amendment and/or repeal of any rule or regulation
49 necessary for the implementation of this act on its effective date are
50 authorized to be made and completed on or before such effective date.